

PATCH PAGES — JUDGE’S COURTESY BINDER (DEPT 301 — HON. VAN AKEN)

Date: Friday, April 24, 2026 **Case:** CGC-25-631801 — *Rosario v. Abdelhalim et al.* **Judge:** Hon. Christine Van Aken, Dept 301 **Delivery:** LRSF 2.7(B) courtesy copy to chambers, 10:00–10:30 a.m. window

Instruction to chambers counter: “Courtesy advance copy of Plaintiff’s Reply papers for the May 6, 2026 MFL-SAC hearing. Formal service on defense follows April 29, 2026.”

DEPT 301 BINDER — APPEND AFTER EXISTING TAB 5

Existing Dept 301 courtesy tabs (1–5) per master execution checklist are unchanged. Insert the following new tabs **6 and 7** immediately after **Tab 5 (11-NOTICE-OF-RULING-EX-PARTE-801-TEMPLATE)**.

Tab	Document	Pages	Purpose
6	REPLY-SAC-MAY-6-801-COURT-READY.pdf — Plaintiff’s Reply ISO Motion for Leave to File SAC	23	Advance courtesy copy for May 6 hearing (Dept 301). Opposition filed 4/23/2026 by Porter Scott; this Reply addresses: anti-subversion cases (<i>Simmons/Sylmar/Ellis/Colton/Hansen/Jackson</i> defense’s mis-cited <i>Contreras v. Dowling</i> , notice-cured argument (May 6 reset satisfies CCP § 1005(b) full 16+2 notice), CCP § 425.16(f) 60-day renewed-motion preservation, and <i>Klopstock/Blank/Trafton/Mesler/Foreman</i> & <i>Clark</i> liberality line.

Tab	Document	Pages	Purpose
7	14-EVID-OBJECTIONS- OCONNELL-DECL-801- COURT-READY.pdf — Evidentiary Objections to O’Connell Decl. (801)	9	Paragraph-by-paragraph objections (Evid. Code §§ 350, 352, 356, 702, 800; CRC 3.1354). Highlights: legal-conclusion objections to ¶¶ 3–4, 7–8; safe-harbor-notice mis-characterization at ¶ 10; § 425.16(g) mis-reading at ¶ 12; rule-of-completeness request (§ 356) re Footnote 1 selective exhibit attachment.

Sub-total patch pages to binder: 32 pages (+1 cover + 2 tab divider inserts = 35).

Binder assembly checklist

- ☐ Print the two PDFs **single-sided** (judge-readable).
- ☐ Three-hole-punch both documents along left margin.
- ☐ Insert labeled tab dividers “**TAB 6 — 801 REPLY (23 pp)**” and “**TAB 7 — 801 EVID OBJ (9 pp)**”.
- ☐ Place this patch-page cover sheet at the front of the insert block.
- ☐ Update the Dept 301 binder spine label / cover TOC to reflect tabs 1–7 (was 1–5).
- ☐ Hand-deliver with existing Dept 301 packet between 10:00–10:30 a.m. on April 24.
- ☐ Note on delivery sheet: “*Advance courtesy — May 6, 2026 hearing; service April 29, 2026.*”

Cross-references for the Court

- The Reply is responsive to **Defendant’s Opposition to Plaintiff’s Motion for Leave to File Second Amended Complaint** and the supporting **Declaration of Tyler J. O’Connell**, both filed April 23, 2026, in Case 801.
- Reply complies with CRC 3.1113(f) word limit (~5,000 words; 23 pp with caption, TOC/TOA, signature, POS).
- Supporting citation-validation memo on file with Plaintiff’s working papers: **APRIL-23-SAC-DEFENSE/801/CITAT** (identifies defense mis-citation of *Contreras v. Dowling* as “4 Cal.App.5th 774”; correct citation is **5 Cal.App.5th 394** — addressed at Reply § V).
- Companion 802 Reply (Dept 302, April 30 hearing) is in Dept 302’s binder as Tab 8.

Items NOT yet to include in the Dept 301 binder (reserved for April 29 service packet)

- **POS-050-APR29-REPLY-SERVICE-801.pdf** — not a Dept 301 chambers item; goes with the clerk filing set and the April 29 e-service email.
- **EMAIL-TO-DEFENSE-APR29-REPLY-801-SERVICE.md** — service cover; not a chambers item.

Prepared: April 23, 2026 — **APRIL-24-2026/JUDGE-BINDER-PATCH-DEPT-301-801-REPLY.md**